

26VECV00006 26VECV00006

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26VECV00006 Hearing Date: September 4, 2026 Dept: NWI

26VECV00006 GARCIA v. SAIDI, et al.

September 4, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Quash Service of Summons

I.

Background

This is a contractual fraud action arising out of a business partnership between Plaintiff Diane Garcia ("Plaintiff") and Defendant Yaron Saidi, wherein Defendants David Saidi and Elham Saidi allegedly aided Defendant Yaron Saidi in substantially interfering with Plaintiff's possession of business assets. On January 2, 2026, Plaintiff filed a Complaint against Defendants Yaron Saidi, David Saidi, Elham Saidi (jointly, "Saidi Defendants") and DOES 1 through 20 (collectively, "Defendants"), alleging causes of action for: (1) Receipt of Stolen Property (Penal Code 496(C)); (2) Constructive Trust; (3) Breach of Oral Contract; (4) Breach of Fiduciary Duty; (5) Civil Stalking (Civ. Code 1708.7); (6) Conversion; (7) Unjust Enrichment; (8) Fraudulent Transfer (Civ. Code 3439 Et Seq.); (9) Declaratory Relief; and (10) Fraud (Constructive).

On August 7, 2026, Defendants Elham Saidi and Yaron Saidi (hereinafter, "Specially Appearing Defendants") filed the instant Motion to Quash Service of Summons. Any opposition would have been due on

August 24, 2026. To date, no opposition has been filed.

II. Discussion

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶](1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. [¶](2) To stay or dismiss the action on the ground of inconvenient forum. [¶](3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8.” (Code Civ. Proc., § 418.10, subd. (a).)

Specially Appearing Defendants move for an order quashing the service of the summons and complaint upon them on the grounds that such service was not made according to any of the statutorily authorized methods for service of process. Specifically, Specially Appearing Defendants contend that the addresses where the substituted service was purportedly effectuated is neither of their legal residential addresses.

“If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (b) [emphasis added].)

Here, the proofs of service filed on June 1, 2026 state that Specially Appearing Defendants were served by substituted service on “Jane Doe,” a Co-Occupant on May 28, 2026 at 2:36 p.m. at 4101 Falling Leaf Dr., Encino, CA 91316. (POS re Def. Yaron Saidi, 6/1/26;

POS re def. Elham Saidi, 6/1/26.) Thereafter, the summons and complaint was mailed to the Falling Leaf address. (Ibid.) Service was done by a California Registered process Server, Samuel Stark of Asap legal, which is prima facie evidence that service was valid per Evidence Code Section 647. However, Defendant Yaron Saidi declares under penalty of perjury that his legal residence is 4805 Lindley Avenue, Tarzana, CA 91356. (Y. Saidi Decl., ¶4.) In fact, Defendant Yaron Saidi states that he moved out of the Falling Leaf address in September 2021. (Id., ¶3.) Furthermore, Defendant Yaron Saidi states that Plaintiff was aware of current legal address because she previously resided at the address with him. (Id., ¶7.)

Similarly, Defendant Elham Saidi avers under penalty of perjury that she has not resided at the Falling Leaf address since her moved out in February 2026 and now resides in the Beverly Hills area. (E. Saidi Decl., ¶¶3-4.) Defendant Elham Saidi does not disclose the home address on the grounds that she is concerned she will be harassed by Plaintiff. (Id., ¶5.)

Defendant Yaron Saidi has not provided any documentary evidence such as a driver's license substantiating that the Tarzana address was his legal residential address during the time substituted service was completed. Additionally, Defendant Elham Saidi has not even disclosed her claimed legal residential address. By contrast, Defendant Elham Saidi admits that it is her Porsche SUV parked outside of the Falling Leaf address. (E. Saidi Decl., ¶7.) Taking these facts altogether, the Specially Appearing Defendants fail to overcome to presumption that the completed substituted service was valid.

III.

Conclusion

Accordingly, Defendants Elham Saidi and Yaron Saidi's Motion to Quash Service of Summons is DENIED. Defendants are ordered to respond to the Complaint within 30 days of this Order.

Defendants Elham Saidi and Yaron Saidi to give notice.